

		not accepted because her firm failed to pay the first appearance fee. (Angelo Decl., ¶ 23.) Cross-Complainants argue the motions were not properly served because Jesse, who served the motion, is a party to the action and they did not receive a mailed copy of the Obrand Defendants’ motion pursuant to Code of Civil Procedure, section 414.10. However, Section 414.10 is inapplicable because it relates to service of summons, not service of motions. Further, Defendants have failed to raise any legal grounds to disregard Angelo’s declaration of fault and fail to provide any admissible evidence to cast doubt on the declaration.
3	Salas vs. Monarch Capital Group, Inc. 2022-01279629	Plaintiff’s Motion to Compel Further Responses to Requests for Admissions, Set Two, and Request for Monetary Sanctions Plaintiff Jose Luis Salas’ Motion to Compel Further Responses to Requests for Admission, set two, is GRANTED. Defendant is ORDERED to provide further responses to Requests for 41-42 and 45-54 by January 10, 2025. Plaintiff’s request for sanctions is DENEID. “On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: [¶] (1) An answer to a particular request is evasive or incomplete. [¶] (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290(a).) Defendant responded to each request with objections that terms such as pool area or patron were vague and ambiguous and they seek premature disclosure of expert opinion. In opposition, Defendant argues the accompanying Form Interrogatory 17.1 will disclose the identity of Defendant’s experts and the facts and documents they relied upon. However, the requests are directed at Defendant and “[a] party to an action may not necessarily avoid responding to a request for admission on the ground that the request calls for expert opinion and the party does not know the answer.” (<i>Bloxham v. Saldinger</i> (2014) 228 Cal.App.4th 729, 751.) Defendant is bound “to make a reasonable investigation of the facts before

		answering items which do not fall within [its] personal knowledge.” (<i>Ibid.</i>) Thus, Defendant’s responses are insufficient. Therefore, Plaintiff’s motion to compel further responses is granted. <u>Sanctions</u> “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).) Defendant was substantially justified in opposing the motion.
4	Herrera-Perkins vs. Ford Motor Company 2024-01372239	Plaintiff’s Motion to Compel Further Responses to Requests for Production, Set One, and Strike Objections Motion to Compel Further Responses to Requests for Production. Plaintiffs Mary L. Herrera-Perkins and Elisa M. Herrera-Perkin’s (Plaintiffs) Motion to Compel Further Responses to Requests for Production (Motion) is GRANTED, in part, and DENIED, in part. Plaintiffs move for an order striking Defendant’s objections and compelling further responses and documents to Plaintiffs’ Request for Production of Documents, Set One, Nos. 16, 19, 20, 21, 32, and 42. Code of Civil Procedure section 2031.310 states in relevant part: (a) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.